

23STLC07422 23STLC07422

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C09%2F14%2F2026

Source SHA-256: cb8680ca94a868cc8cd25daed51c7965b73c522c7a30f0780b17e3754d614339

Case Number: 23STLC07422 Hearing Date: September 14, 2026 Dept: 26

TENTATIVE RULING:

Defendant Destiny C. Erazo-Lopez's Motion to Vacate Default and Default Judgment is denied.

Analysis:

On November 21, 2023, Plaintiff Progressive West Insurance Company ("Plaintiff") filed the instant action against Defendant Destiny C. Erazo-Lopez ("Defendant"). Following Defendant's failure to file a responsive pleading, the Court entered default on April 28, 2025 and default judgment on May 9, 2025.

Defendant filed the instant Motion to Set Aside Default on July 6, 2026. The Motion did not include a proof of service showing it was served on Plaintiff, or that Plaintiff was given notice of the hearing date. Plaintiff filed a declaration regarding the improper service on July 20, 2026. At the hearing on July 27, 2026, the Court continued the matter to allow for proper service of the Motion papers. (Minute Order, 07/27/26.) Defendant filed proof of service by mail of the papers on August 6, 2026, and Plaintiff filed a substantive opposition on August 28, 2026.

Discussion

Defendant moves to vacate the entry of default and default judgment pursuant to Code of Civil Procedure section 473.5, on the basis that she did not receive actual notice of the action in time to appear. Code of Civil Procedure section 473.5 states in relevant part:

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

(Code Civ. Proc., § 473.5, subd. (a).)

Additionally, the motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc., § 473.5, subd. (b).)

The Motion is supported by Defendant’s declaration, which attests that the person described in the proof of service did not reside or accept service at her residence. (Motion, Erazo-Lopez Decl., ¶5.) The declaration acknowledges that the service address is Defendant’s residence. (Ibid.) The proof of service describes the person to whom the papers were delivered as “‘John Doe’, Male, Hispanic, 56 Years, Black Hair, Brown Eyes, 5’07”, 165 lbs, co-occupant.” (Proof of Substitute Service, filed 02/23/24, ¶5.) Defendant declares she only learned of this action on April 3, 2026, upon receiving a notice from the Department of Motor Vehicles that her driver’s license had been suspended. (Motion, Erazo-Lopez Decl., ¶3.)

In opposition, Plaintiff points out that after delivery of the papers to “John Doe” at Defendant’s residence, the Summons and Complaint were also mailed to the service address: 14530 Wolfskill St. Mission Hills, CA 91345. (Opp., Nivinskus Decl., ¶6 and Exh. A.) This is also attested to in the proof of service. (Id. at Exh. A, p. 3.) Plaintiff mailed the Summons and Complaint on January 22, 2024, and mailed a Request for Default in April 2025, to the service address, and none of the papers were returned as undeliverable. (Id. at ¶¶8-9.)

Defendant has not demonstrated she lacked actual notice of the action in time to respond to the Complaint or prevent default judgment. Defendant's supporting declaration states in only a single conclusory sentence that no one matching the description in the proof of service "resided at or accepted service at" her residence.

(Mot., Erazo-Lopez Decl., ¶5.) But the Declaration does not address why Defendant did not receive actual notice of the lawsuit when the Summons and Complaint were mailed to her residence. Defendant concedes that service address was her residential address at the relevant time, she received the DMV notice in the mail at that address, and no mail sent by Plaintiff to that address was returned as undeliverable. In light of those facts, Defendant's brief assertion contesting that the papers were delivered to "John Doe" does not convincingly establish she did not receive notice of the lawsuit, or that the lack of notice was not due to her avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5(b).) The Court finds that relief from the entry of default or default judgment is not available to Defendant under Code of Civil Procedure section 473.5.

Conclusion

Defendant Destiny C. Erazo-Lopez's Motion to Vacate Default and Default Judgment is denied.

Judicial Assistant to give notice.